Overview

Purpose	This document provides the instructions for reportability decision (RD) making and regulatory reporting (RR) in South Korea.
Scope	This document applies to the functions that perform activities related to reportability decisions and reporting in accordance with but not limited to applicable regulations in South Korea.
Roles	Formally Designated Complaint Handling Unit ▪ Operating Unit (OU) Complaint Unit ▪ Regional Complaint Unit (RCU)

Table of Contents

Process Overview **6**
Responsibility Matrix – South Korea **6**
Process Detail **7**
1. Make Reportability Decision 7
2. Regulatory Reporting 10
3. Foreign Substance Regulatory Reporting 10
4. Regulatory Inquiry 13

References **13**
Quality Records **13**
Appendix A – South Korea Decision Trees **14**
Appendix B – Matrix Logic for Determining Report Types **16**
Appendix C – Multiple Decisions per Event **16**
Appendix D – Code and Rationale Matrix **16**
Appendix E – Reporting Timelines **17**

Terms and Definitions

Term	Definition	Source
Follow-Up / Supplemental Report	A report provided to the competent authority(ies) to whom an initial report was sent. This type of report is used in cases where the timeline for investigation outlined in the initial report has been reached and investigation is not complete.	Medtronic
Foreign Experience Report (FER)	Report that may be required when the complaint event did not occur in a specific country, but because the product in question is registered there, that country's Regulatory Body may require a report notifying them of the complaint.	Medtronic
Global Complaint Handling (GCH)	Global Complaint Handling System used to track product events for Cardiovascular, Neuroscience, and Medical Surgical.	Medtronic
Incident	A malfunction or deterioration in the characteristics and/or performance of a device, as well as any inadequacy in the labeling or Instructions For Use (IFU) which: ▪ Led or might have led to a death ▪ Led or might have led to a serious deterioration in the state of health of patient, user, or another person. A serious deterioration in the state of health includes: ▪ Life-threatening illness or injury ▪ Permanent impairment of a body structure ▪ A condition necessitating medical or surgical intervention to prevent permanent impairment of a body function or permanent damage to a body structure ▪ Any indirect harm because of an incorrect diagnostic or in-vitro diagnostic test results when used within manufacturer's instructions for use Fetal distress, fetal death, or any congenital abnormality or birth defects.	Medtronic
Malfunction	A failure of the device to meet its performance specifications or otherwise perform as intended. Performance specifications include all claims made in the labeling for the device. The intended performance of a device refers to the intended use for which the device is labeled or marketed"*, and include uses commonly applied in the medical community.	*21 CFR 803 Medtronic

Term	Definition	Source
	Use errors may also be considered a malfunction despite the fact that the device did not fail to meet specifications (see Use Error definition below). **Note:** A failure of a device to meet a specification that does not affect the performance (either intended or labeling claims) is not considered a malfunction, (e.g., cosmetic defects).	
Medical or Surgical Intervention	Any deliberate attempt to modify a health outcome, including drugs, surgical procedures, use of other devices, behavioral treatments, and process-of-care changes (including hospitalization). General first aid is not considered a medical or surgical intervention.	Medtronic
Ministry of Food and Drug Safety (MFDS)	The Korean regulatory agency.	Medtronic
Operating Unit Complaint Unit	A unit that executes and maintains processes for receiving, reviewing, and/or evaluating complaints. NOTE: This complaint unit may be comprised of one or more of the following functional groups: ▪ Customer Quality Experience Management (CQXM) ▪ Functions/individuals that contribute to complaint analysis/investigation	Medtronic
Original Equipment Manufacturer (OEM) Product	An external supplier of a finished device, drug, biologic, human tissue or combination product which: ▪ Owns the design and manufacture; ▪ Is designated as the Legal Manufacturer; and ▪ Owns primary regulatory responsibility. Medtronic may perform certain other regulatory actions / responsibilities (e.g., product registration and listing) in specific geographies.	Medtronic
Permanent Impairment or Damage/ Permanent / Permanent Disability	Irreversible impairment or damage to a body structure or function, excluding trivial impairment or damage. Note: If it is unclear if the impairment/damage is trivial, determination shall be made by a Person Qualified to Make a Medical Judgment. Data inputs into this decision may include, but are not limited to, the following: ▪ The risk assessment document assigned severity for the failure mode – Hazard analysis and/or situation analysis for the failure mode	21 CFR 803 Source for "Note": Medtronic

Term	Definition	Source
	Assessment of the severity of the event	
Regional Complaint Unit	A complaint-handling unit that resides within the Region that executes certain process steps.	Medtronic
Regulatory Inquiry (RI/RFAI)	A request for information from regulatory authorities and/or notified bodies. Possible subjects of regulatory inquiries include, but are not limited to, complaints, regulatory reports, professional publications, and presentations, user reported events, regulatory report trending information. Excludes requests for information related to regulatory submissions, audit activities, and general compliance requests.	Medtronic
Remedial Action	Any action other than routine maintenance or servicing of a device necessary to prevent recurrence of a reportable event. Action taken to correct only a single device should not be considered a remedial action.	Medtronic
Remote (risk)	To be defined by each business utilizing occurrence probabilities outlined in the risk management procedure and/or risk management file for the product.	Medtronic
Serious Public Health / Threat Risk of Substantial Harm to Public Health	An event type that results in imminent risk of death, serious deterioration in state of health, or serious illness that requires prompt remedial action, events that are of significant and unexpected nature such that they become alarming as a potential public health hazard, or the possibility of multiple deaths occurring at short intervals.	Medtronic
Serious Injury	An injury or illness that: ▪ Is life threatening ▪ Results in permanent impairment of a body function or permanent damage to a body structure; or necessitates medical or surgical intervention to preclude permanent impairment of a body function or permanent damage to a body structure.	21 CFR 803
Similar Products / Sister Products	Products with equivalence in shape, structure, raw material, intended use, function, device classifications, efficacy, effect, performance, etc. (for example, products that differ only in size). Next-generation products are not considered similar.	Medtronic
SmartSolve	Complaint Handling System used to track product events for Diabetes.	Medtronic

Term	Definition	Source
System	Multiple devices approved as a system by FDA under the same PMA or 510k, or otherwise approved as a system by a regulator.	Medtronic
Trivial	In the context of assessing severity of impairment or damage, trivial is considered non-life threatening impairment or damage.	Medtronic

Term	Definition	Source
User Error	An error regarding the use of a device, made by the person using the device, that is inconsistent with the approved Instructions For Use (IFU) or other training provided to the user. Act or omission of an act, that has a different result to that intended by the manufacturer or expected by the operator of the medical device (unintended use against IFU).	Medtronic

Process Overview



- Product Complaint

- Decision Rationale
- Regulatory Report
- Record of Inquiry

Responsibility Matrix – South Korea

Portfolio	Operating Unit	RD	Approve RD	RR	Approve RR	Submit RR	FER	Submit FER
Cardiovascular	Cardiac Ablation Solutions (CAS), Cardiac Rhythm Management (CRM), Mechanical Circulatory Support (MCS), Cardiac Surgery, Structural Heart & Aortic Integrated, Coronary & Renal Denervation, Peripheral Vascular Health (PVH)	RCU	N/A	RCU	N/A	RCU	OU	RCU
Diabetes	Diabetes	OU	RCU	RCU	N/A	RCU	OU	RCU
Medical Surgical	Endoscopy, Surgical, Acute Care & Monitoring (ACM), Ventilation Service and Support (VSS)	RCU	N/A	RCU	N/A	RCU	OU	RCU
Neuroscience	Cranial & Spinal Technologies (incl. Medicrea, Titan, and Kanghui), Ear/Nose/Throat, Neuromodulation, Neurovascular, Pelvic Health & Gastric Therapies	RCU	N/A	RCU	N/A	RCU	OU	RCU

Process Detail

1. Make Reportability Decision

Step	Role	Action
1.	Formally Designated Complaint Handling Unit	Review the event and associated information to evaluate if the complaint is reportable to MFDS. ▪ Make an RD timely for every complaint based on information reasonably known. ▪ Refer to *Appendix A* – South Korea Decision when making the RD. ▪ For Original Equipment Manufacturer (OEM) products, reporting responsibility is applicable if Medtronic is the License Holder or Importer for the product in South Korea. Consult Regulatory Affairs and Supplier Quality as needed to confirm whether Medtronic is the License Holder or Importer and therefore has reporting responsibilities. – When making the RD for events involving OEM products, input received from the OEM may be considered as needed to inform the RD. Where Medtronic is responsible for reporting, the final decision will be made per Medtronic process. ▪ Document the RD in the complaint file. Based on results of the decision trees, rationale is provided in *Appendix D – Code and Rationale Matrix*. ▪ A reportability decision may also exist for each Medtronic product involved in a complaint. Complete the decisions to indicate system/event reporting. Use *Appendix C - Multiple Decisions per Event*, when multiple RDs exist. ▪ If foreign substance/material is found inside device and/or packaging, refer to 3. Foreign Substance Regulatory Reporting. NOTE: ▪ Information may need to be requested from the customer to make the RD. Perform all customer communication per 027-WI188, Customer Communication or equivalent.
2.	Region Complaint Unit (SmartSolve Only)	When the OU Complaint Unit makes the initial RD: ▪ Conduct a regulatory evaluation of the reportable and potential reportable RD. ▪ Document regulatory evaluation in the complaint handling system.

Step	Role	Action
3.	Formally Designated Complaint Handling Unit	Review the previously documented RD when additional information is received that potentially changes the decision. A review is required for information such as, but not limited to the following: ▪ Aware date ▪ Event clarification ▪ Serial or lot number ▪ Patient outcome ▪ Alleged failure mode If the initial reportability decision changed after the reassessment, determine if a supplemental or follow up report to the health authority applies. ▪ Information such as, but not limited to patient ID, gender, physician name, etc. does not require review of previously documented RD. Document a reassessed decision in the complaint file. ▪ GCH for Cardiovascular, Neuroscience, Medical Surgical ▪ SmartSolve for Diabetes
4.	Formally Designated Complaint Handling Unit	South Korea regulations require RDs (e.g., Foreign Experience Reports (FER)) for events that occur in other Regions/countries. ▪ Complete any FER decisions timely to ensure regulatory reports are submitted on or before the due date. ▪ For OEM products, reporting responsibility is applicable if Medtronic is the License Holder or Importer for the product in South Korea. Consult Regulatory Affairs and Supplier Quality as needed to confirm whether Medtronic is the License Holder and therefore has reporting responsibilities. See *Appendix B - Matrix Logic for Determining Report Types* for reporting requirements. ▪ Assessment of the initial FER as 'Potential' must occur after completion of complaint investigation. If additional information is received after a reporting decision has been made, reassess the original FER decision.

2. Regulatory Reporting

Step	Role	Action
1.	Region Complaint Unit	For reportable events: ▪ Determine the report type (e.g., initial, follow-up, final, individual/summary report). ▪ Document the report type in the complaint handling system. – GCH for Cardiovascular, Neuroscience, Medical Surgical – SmartSolve for Diabetes
2.	Region Complaint Unit	Complete regulatory reports on the regulatory body website. If multiple regulatory reports are required for a single event, align each report with this document.
3.	Region Complaint Unit	Translate reports to local language prior to submission, as necessary. Report language must meet applicable regulatory authority requirements.
4.	Formally Designated Complaint Handling Unit	If a report is submitted late (i.e., after the due date, including initial and supplemental reports) consider escalation per D00528427, *Regulatory Report Timeliness Evaluation* or local processes.
5.	Region Complaint Unit	If a report receipt (or acknowledgement number) is provided by a regulatory authority and/or notified body: ▪ Document the information within the complaint system – GCH for Cardiovascular, Neuroscience, Medical Surgical – SmartSolve for Diabetes
6.	Region Complaint Unit	If a report was submitted late (i.e., after the due date, including initial and supplemental reports) conduct a late submittal evaluation to determine the reason as per D00528427.

3. Foreign Substance Regulatory Reporting

Step	Role	Action
1.	Region Complaint Unit	The scope of foreign substances shall be as follows: 1) A substance that is not a normal material used for medical devices, such as metal, plastic, or debris generated during manufacturing processes and that may cause direct or indirect harm or damage to the human body during the use of medical devices. 2) A substance related to living things such as insects and their eggs, parasites and their eggs, and animal

Step	Role	Action
		carcasses that may cause direct or indirect harm or damage to the human body during the use of medical devices. 3) Other substances determined and publicly notified by the Minister of Food and Drug Safety to prevent harm caused by the use of medical devices among the substances equivalent to those falling under subparagraph 1) or 2).
2.		Follow-up for additional information on a foreign substance related event with the initial reporter. Additional information can include, but is not limited to the following: 1) Detail particulars of the report 2) The photo/video for foreign substance/material 3) The return status for the product with foreign substance/material – Check whether a similar report exists on a product with the same CFN/Lot with foreign substance/material
3.		The picture and/or video related to foreign substances shall be uploaded to the complaint handling system. ▪ GCH for Cardiovascular, Neuroscience, Medical Surgical ▪ SmartSolve for Diabetes
4.		Without delay, complete regulatory reports once the picture and/or video related to foreign substances is received. Submit the report on the regulatory body website.
5.		Submit all regulatory reports on or prior to the determined due date. Refer to *Appendix* E for applicable reporting timelines. Include all required / available information known at the time of the report.
6.		If a report receipt (or acknowledgement number) is provided by a regulatory authority and/or notified body, document the information within the complaint handling system. ▪ GCH for Cardiovascular, Neuroscience, Medical Surgical ▪ SmartSolve for Diabetes
7.		The detailed items to be prepared for the reports are such as, but not to limited to the following: 1) Requirement (Importer compliance) and MFDS inspection items – Procedures related to Complaint Handling, MDR reporting and CAPA – Tracking number of device return (if applicable)

Step	Role	Action
		– Complaint Product Event Report and mPXR report – Inbound Inspection Record – Outbound record (Delivery Note) – Certificate of Analysis (CoA) – Device History Record (DHR) – Korea Device Master File (DMF) – Labeling (Label, IFU and/or eIFU) 2) Investigation results from manufacture if available – Regulatory Inquiry Letter – Foreign material analysis – Source of foreign material – DHR Review for same CFN / lot number – Overall manufacturing flow chart or procedure – Inspection procedure – Gowning procedure, cleanroom procedure, cleanroom class – Operator's Training Record – Manufacturing quantity of the product for same CFN and/or lot – Complaint trends for 3 Years – Customer letter – Existing CAPA report – CAPA report, if new CAPA is required
8.		Request a visual inspection of the inventory stock to verify whether there is a foreign material issue with any other device with the same CFN/Lot, in cases where Medtronic Korea DC have same lot in stock. Identify the distributed quantity (including inventory stock, distributor end-hospital) for the same CFN/lot, if needed. In situations requiring FCA, contact the Enterprise FCA team and/or regional commercial team.
9.		Once all the applicable items are available, report investigation results to MFDS.

4. Regulatory Inquiry

Regulatory authorities may submit inquiries or request additional information from the OU or Region.

Step	Role	Action
1.	Region Complaint Unit	Process per D00224727, *Customer Quality Regulatory Inquiries.*
2.		Regulatory inquiries and requests for additional information received shall be logged to the Korean Regulatory Inquiry log.

References

Number	Title
027-WI188	Customer Communication
D00224727	Customer Quality Regulatory Inquiries
D00528427	Regulatory Report Timeliness Evaluation

Quality Records

Quality Record	Required Approvals
Complaint Record	None
Vigilance Report	None
Foreign Material Report	None

Appendix A – South Korea Decision Trees

Foreign Experience Report (FER) Tree

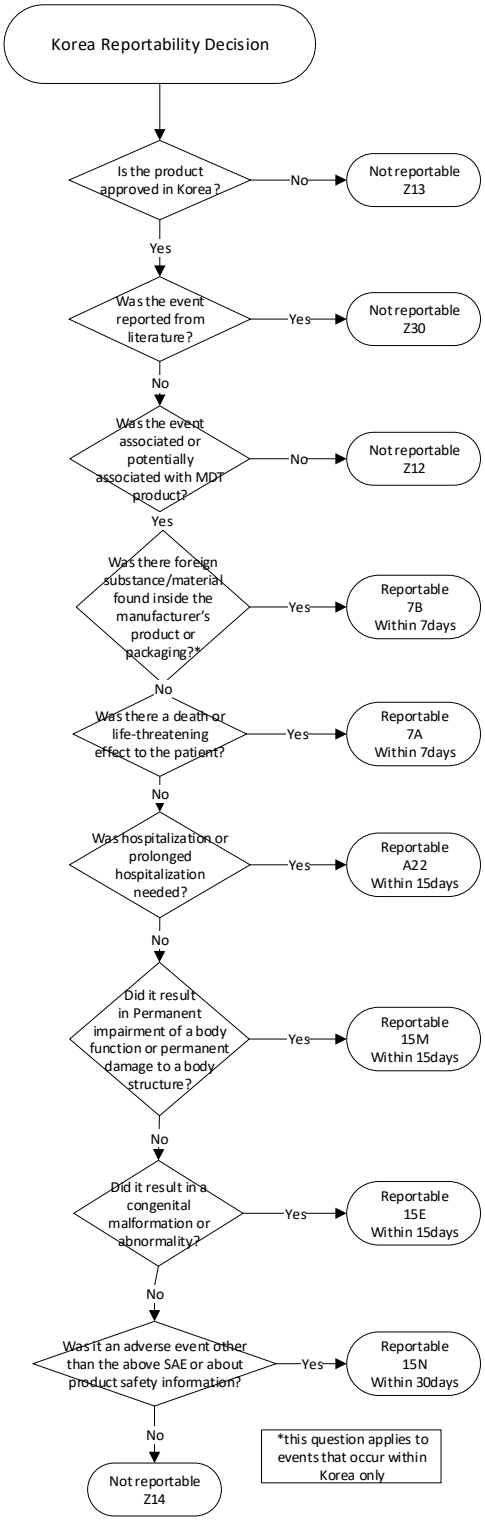


*Potential Foreign Event Reporting if –

Any Serious Injury/Death occurred and MDT Product is associated or potentially associated with the event, whereby involved product is analyzed or investigation is complete

If there is a FER Potential, proceed to the Korea decision tree for reportability determination.

South Korea Reporting Decision Tree



Appendix B – Matrix Logic for Determining Report Types

Country	In Country Event	Event in Another Country; Same Device Registered in Country	Event in Another Country; Similar Device Registered in Country	Reporting Requirement
	Yes/No	**Yes/No**	**Yes/No**	**Mandatory/Voluntary**
South Korea	**Yes**	**Yes**	**No**	**Mandatory**

Appendix C – Multiple Decisions per Event

Use the following chart to determine the reporting approach if there are multiple products associated with a complaint.

Region	RD Approach	Regulatory Reporting Approach
South Korea	Per License	Per License

Appendix D – Code and Rationale Matrix

Code	Rationale
7A	The event resulted in a death or life-threatening effect.
7B	Foreign substance/material found inside product or packaging.
15E	The event resulted in congenital anomalies or birth defects.
15M	Event resulted in serious disability, malfunction, or a disorder from which it was impossible to recover.
15N	Event resulted in an adverse event or is related to product safety information.
A22	The incident required or prolonged hospitalization.
Z12	Medtronic product did not contribute to the event.
Z13	The device is not regulated.
Z14	The device did not cause or contribute to a death or adverse event.
Z30	Event reported through literature.

Appendix E – Reporting Timelines

Report Type	Timeline
The event resulted in a death or life-threatening effect.	Within 7 calendar days of becoming aware of event. *In this report type, the supplementary report shall be reported within 8 calendar days from the date of the initial report.
▪ The incident required or prolonged hospitalization. ▪ Event resulted in serious disability, malfunction, or a disorder from which it was impossible to recover. ▪ The event resulted in congenital anomalies or birth defects.	Within 15 calendar days of becoming aware of event.
Adverse event other than the 7, 15 calendar day serious adverse events or related to product safety information.	Within 30 calendar days of becoming aware of event.